

CHAP. XXIV.—*An Act supplementary to the act intituled "An act concerning the District of Columbia."*(a)

SECTION 1. *Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,* That the circuit courts for the district of Columbia shall be and they are hereby invested with the same power respecting constables, inspectors, and the inspection of tobacco and flour, surveyors, mills, highways and ferries, for the county of Alexandria, as have heretofore been vested in the county courts of the commonwealth of Virginia; and for the county of Washington, the same power and authority as have been heretofore exercised by the county and levy courts of the state of Maryland; with power to appoint to all other offices necessary for the said district, under the laws of the respective states of Maryland and Virginia. And all officers for whom no special provision is made by this act, or the act to which this is a supplement, shall receive the same fees and emoluments as they have respectively received under the jurisdiction of the respective states.

SEC. 2. *And be it further enacted,* That all indictments shall run in the name of the United States, and conclude, against the peace and government thereof. And all fines penalties and forfeitures accruing under the laws of the states of Maryland and Virginia, which by adoption have become the laws of this district, shall be recovered with costs, by indictment or information in the name of the United States, or by action of debt, in the name of the United States and of the informer; one half of which fine shall accrue to the United States, and the other half to the informer; and the said fines shall be collected by or paid to the marshal, and one half thereof shall be by him paid over to the board of commissioners herein after established, and the other half to the informer; and the marshal shall have the same power regarding their collection, and be subject to the same rules and regulations as to the payment thereof, as the sheriffs of the respective states of Maryland and Virginia are subject to in relation to the same.

SEC. 3. *And be it further enacted,* That all felonies committed within the county of Alexandria shall be punished in the same manner as such crimes were punishable by the laws of Virginia, as they existed prior to the year one thousand seven hundred and ninety-six; and the circuit court for the said county of Alexandria shall possess and exercise the same powers and jurisdiction, civil and criminal, as is now possessed and exercised by the district courts of Virginia.

SEC. 4. *And be it further enacted,* That the magistrates, to be appointed for the said district, shall be and they are hereby constituted a board of commissioners within their respective counties, and shall possess and exercise the same powers, perform the same duties, receive the same fees and emoluments, as the levy courts or commissioners of county for the state of Maryland possess, perform and receive; and the clerks and collectors, to be by them appointed, shall be subject to the same laws, perform the same duties, possess the same powers, and receive the same fees and emoluments as the clerks and collectors of the county tax of the state of Maryland are entitled to receive.

SEC. 5. *And be it further enacted,* That the clerks of the circuit court shall, within their respective districts, be bound to perform the same duties, respecting the recording of deeds and all other services, and shall receive the same fees and emoluments for the same (except in those cases provided for in the ninth section of the act to which this is a supplement) as are now performed and received by the clerks of the counties of the respective states of Maryland and Virginia.

STATUTE II.

March 3, 1801.

Act of Feb. 27, 1801, ch. 15.
Powers of the circuit court.

Fees of certain officers of the territory.

Form of indictments.

Mode of recovering and distribution of penalties.

Punishment of felonies.

Jurisdiction of the circuit court for Alexandria.

Magistrates to form a board of county commissioners.

Duties and emoluments of the clerks of courts.

Act of Feb. 27, 1801, ch. 15.

(a) See notes to act of February 27, 1801, chap. 15.

Delivery of fugitives from justice or labour from any state.

SEC. 6. *And be it further enacted*, That in all cases where the constitution or laws of the United States provide that criminals and fugitives from justice, or persons held to labour in any state, escaping into another state, shall be delivered up, the chief justice of the said district shall be, and he is hereby empowered and required to cause to be apprehended and delivered up such criminal, fugitive from justice, or persons fleeing from service, as the case may be, who shall be found within the district in the same manner and under the same regulations as the executive authority of the several states are required to do the same; and all executive and judicial officers are hereby required to obey all lawful precepts or other process issued for that purpose, and to be aiding and assisting in such delivery.

Powers of sheriffs and collectors of certain adjacent counties may be exercised within the district for the collection of certain public dues.

SEC. 7. *And be it further enacted*, That it shall be lawful for the sheriffs and collectors of public dues for the counties of Montgomery and Prince George's in the state of Maryland, and for the sheriffs of Fairfax county in the commonwealth of Virginia, and they shall respectively have full power and authority to enter into those parts of the now district of Columbia, which were heretofore within the limits of their respective bailiwicks, for the purposes of collecting by distress or otherwise, as they were heretofore authorized to do, all officers' fees, state taxes and county taxes, levies, fines and other public dues, which were due on the first Monday of December, one thousand eight hundred, and still remain uncollected, from persons residing or having property, subject to the payment of such officers' fees, state taxes and county taxes, and levies within the said district; and all disputes or controversies that do or may arise between such sheriff or collector, and the person or persons from whom he or they may claim such public dues, shall be cognizable before and tried by the respective state courts to whom the trial of such controversies heretofore belonged, and not before the court of the district of Columbia.

Sheriffs may make certain arrests.

SEC. 8. *And be it further enacted*, That it shall and may be lawful for the sheriffs of the said counties of Montgomery and Prince George's in the state of Maryland, and for the sheriff of Fairfax county in the commonwealth of Virginia, and they shall respectively have full power and authority to enter into those parts of the now district of Columbia, which were heretofore within the limits of their respective bailiwicks, for the purpose of arresting and conducting to the respective jails under their keeping and care, as they heretofore might have done had the law to which this is a supplement never passed, each and every person within the limits of the district of Columbia, upon whom such sheriff hath heretofore served a writ of capias ad satisfaciendum, capias ad respondendum, attachment or other process, issuing from any state court, which commands and requires such sheriff to have the body of the person before the court from which such writ or process hath issued.

The chief judge and one of the associate justices may make appointments.

SEC. 9. *And be it further enacted*, That where by this act, and the act to which this is a supplement, appointments are authorized to be made by the circuit court of the district, it shall be lawful for the chief judge, with one of the associate justices of the said court, to make such appointments.

APPROVED, March 3, 1801.

STATUTE II.

March 3, 1801.

CHAP. XXV.—*An Act to amend the act altering the district of Bermuda Hundred and City Point.*

Alterations in the districts.
1800, ch. 49.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That from and after the passing of this act, the master or commander of any ship or vessel arriving within the districts of Petersburg or Richmond, laden with goods, wares and merchandise, belonging or consigned to persons resident within both